

The Claremont City Council held a meeting on Wednesday, January 22, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau – Via Phone
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

A motion was made by Councilor Stone and seconded by Councilor Limoges to move agenda item 10. A Transfer Station RFP to Old Business after Item 9.C.

Voice Vote:

Contois - no
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - no
Mooshian - yes
Girard - yes
Motion carried 7-2

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Councilor O'Hearne to accept the minutes of the June 8th, 2022, City Council meeting.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - Abstain

Koloski - yes

Limoges - yes

Beliveau - Abstain

Mooshian - yes

Girard - yes

Motion carried 7-0, 2 abstained

MAYOR'S NOTES

Mayor Girard noted the Claremont Opera House 125th year celebration is this Saturday at 7 p.m. and tickets are still available.

Mayor Girard stated this was Mr. MacLean's last full-time day with the City. Mayor Girard went on to describe Mr. MacLean's devoted work ethic to the City and how much Mr. MacLean cared for the Community of Claremont. Mayor Girard Thanked Mr. MacLean for all of his work.

CITY MANAGER'S REPORT

Mr. MacLean thanked Claremont, City Council, and the Mayor. Mr. MacLean noted the Council has worked very well together in the six months he has been Interim City Manager and attributed this to Mayor Girard.

Mr. MacLean mentioned that the City staff keeps the City going and called City employees "Intrepid warriors." Mr. MacLean stated he appreciates John Bohenko; who will be taking the place of Interim City Manager and believes Mr. Bohenko will give a great effort.

Mr. MacLean prompted the Council by stating there is a new Police Chief.

Chief Chase stated the Claremont Police Commission has given a conditional offer of employment to Brent Wilmot.

Mr. Wilmot stated it was an honor to come back home, and that it has been dream for a while finally coming to fruition.

Mr. MacLean noted there were issues over the weekend relative to the treatment plant. This effected electrical panels, and sludge is now being pumped out appropriately. Mr. Gleeson, Director of Department of Public Works and staff are working with outside consultants to get this resolved.

Mr. MacLean stated the Financer Director, Ms. Richmond is not just working on budget but also working with BS&A. This is large project and a major transition of accounting procedures. Mr. MacLean thanked Ms. Richmond for all of her hard work.

Mr. MacLean concluded the managers remarks by noting an Innovation Award recognition will coming forward for Ted Wadleigh and other staff from DPW.

CITIZEN'S FORUM

Mayor Girard opened the Citizen's Forum, and reminded everyone this forum is for non-agenda items and each individual has five minutes to speak.

Walt Stapleton, Ward 3, House Representative described an article relative to the denial of municipal aggregation power purchasing. Mr. Stapelton also noted he will be filing to run again for district six and would appreciate everyone's vote.

Norm Blouin, Ward 3, asked the Council why the dialysis center at Rite-aid was canceled, and wants to know the status. Mayor Girard stated this is information that can be brought back to Mr. Blouin. Mr. Blouin questioned the experience of the Department of Public Works Director, Mr. Blouin stated his wife had accident on East Green Mountain Road because grass is about four feet high and makes it hard to see on-coming traffic. Mr. Blouin suggested starting the mowing in May, Mr. Blouin also stated he has brought this to the attention of DPW before.

OLD BUSINESS

Ordinance 594 - HB1029 Police Commission

CITY OF CLAREMONT

IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #594

"POLICE COMMISSION"

REMOVAL AUTHORITY OF CITY COUNCIL

The City of Claremont Ordains:

Pursuant to a special act of the New Hampshire Legislature, by and through House Bill 1029 of the 2022 session, and signed into law by Governor Sununu on April 18, 2022 within Chapter 22 of the Laws of 2022; Chapter 2, Article II, Division 10 of the City of Claremont Code is hereby amended as follows:

Section 1. Division 10 – Police Commission

Section 2-134 is revised as follows:

A police commission, hereinafter referred to as commission, was established prior to the City's Charter by a special act of the New Hampshire Legislature, Chapter 342 of the Laws of 1947. This special act was amended by Chapter 275, Laws of 1963 and Chapter 382, Laws of 1973. The Legislature also amended certain provisions of the city's original Charter in 1971 regarding budgetary control of the police department (Ch. 274, Laws of 1971, amending Chapter 392, Laws of 1947); however, some of those changes were repealed in Chapter 382, Laws of 1973. The Legislature, once again, amended this special act by and through Chapter 32 of the Laws of 2021. Another amendment occurred to this special act in Chapter 22 of the Laws of 2022. Pursuant to section 69 of the City Charter, the commission continues to be governed by these special acts of the Legislature rather than the provisions of NH RSA 105-C.

Section 2. Division 10 – Police Commission

Section 2-135 (d) is revised as follows:

- (d) The city council shall have full power to remove any commissioner at any time for just cause and after due hearing which cause shall be specified in the order of removal.

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 2, Article II, Division 10 of the City of Claremont Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendment as presented by this Ordinance.

Section 4. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is held to be unconstitutional or invalid for any reason, such decision shall not affect the remaining portions of this Ordinance.

Section 5. Effective Date

This Ordinance shall take effect immediately upon passage.

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to suspend rules to read ordinance into the record

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - no

Limoges - yes

Beliveau - yes

Mooshian - no

Girard - yes

Motion carried 7-2

Mr. MacLean summarized Ordinance 594 and stated this was more of a housekeeping item, which now allows the Council to remove Police Commissioners.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to adopt Ordinance 594.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Rail Trail Use – 13 Edgewood

Mr. Maclean noted this was a continuation of conversation from the last meeting held on June 8th. DPW reviewed the area and came up with a quote for cost of a loader and a dump truck to remove material that is encroaching onto the Rail Trail totaling \$365.00.

Mr. Feustel, Ward 1, clarified that the City has only calculated about 36 yards, while Mr. Feustel noted it was about 112 yards.

Councilor Koloski stated he was not comfortable moving forward with using City equipment and time to remove material.

Mr. Gleeson stated he walked Rail Trail and explained how the Department of Public Works took their measurements, Mr. Gleeson also mentioned there is a collection of trapped water but does not believe this is wetlands.

Councilor Koloski reiterated not being comfortable having the City remove any of this material.

Mayor Girard noted this motion was not to dictate how Mr. Feustel removes his material that is encroaching on the Rail Trail.

Motion to Require Removal of Encroachment

The Claremont City Council hereby authorizes the city manager, or his designees, to take such actions as may be necessary for the proper management and administration of the City's interest in that portion of the abandoned railroad right of way behind 13 Edgewood Street. Such action shall include the removal of all encroachments from the right of way behind 13 Edgewood Street by the owner within 60 days, including authorizing the use of motorized vehicles under the supervision of the Parks & Recreation Department to ensure no damage to the trail or any wetlands as a result of the removal.

A motion was made by Councilor Stone and seconded by Councilor Beliveau to authorize the City Manager, or his designees, to take such actions as may be necessary for the proper management and administration of the City's interest in that portion of the abandoned railroad right of way behind 13 Edgewood Street while amending the motion to 90 days

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - no
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 8-1

City Hall Upgrades

Municipal Complex Upgrades and Updates:

- Electrical Issues reported from the Electrician from the L.E.D. Lighting Project

Mr. Willette described the electrical issues and read an email to the Council sent by Collins Electric. Essentially stating the wiring was in disrepair, circuits had been improperly wired, and will need to be cleaned up to meet code. Mr. Willette noted this was an estimated repair cost of \$40,000.00.

- Opera House Safety Issues -Pricing and Progress

Mr. Willette noted the pricing of all materials that need to be modified do not exceed \$18,500.00. Mr. Willette noted the original plan was to replicate the balusters on the hand-rails; these cannot be obtained. The other option is to place horizontal brass coated bars. Mr. Willette also noted the water and sewer separation above Opera House issue, Mr. Willette stated when the ventilation starts it brings in the sewer smell. This is an estimated project cost of \$6,000.00.

- HVAC Upgrades for Council Chambers, Mr. Willette stated he would need to go through engineering for these upgrades.

- Update of Roof Progress

Mr. Willette stated the RFP has been posted online on June 15, 2022 and will be posted in the Eagle Times for June 18, 2022. The bid closes on July 18, 2022 with a Mandatory Pre-Bid Meeting for July 11, 2022.

- Installing No Smoking Signs around City Hall, Mr. Willette would like permission to put up no smoking signs, there would be no cost the signs are already available.

Transfer Station RFP

At the direction of the City Council an RFP was advertised to explore the cost effectiveness of privatizing the Transfer Station. On June 13th there was a public bid opening with two interested companies for review; DeCamp Waste Services and Casella Waste Management, Inc (Casella).

Both options would reduce the cost of the tax rate for the operation less the cost of vegetation control and land fill monitoring which averages around \$18,000 per year. The table below reflects highlights from the RFP proposals and if there were requirements not met.

Company	Met the Bid Spec	Rate Sheet Prices	Other
DeCamp W.S.	YES	Most Favorable (See Attached)	
Casella	NO <i>Proposal Exemption indicates "Casella will NOT be responsible for paying any City tax, including property tax**" 4 (pg:6)</i>	Least Favorable (See Attached)	
Casella (Alternative Proposal)	NO <i>(The RFP was for operation in its current footprint. This option is for closure of the station.)</i>	See Casella RFP "Alternate Proposal" (pg:6)	Alternate Proposal includes a payment to the city for \$24,000 annually as a "host community fee"

****RSA 73:23-b (b)** All leases and other agreements, the terms of which provide for the use or occupation by others of real or personal property owned by the state or a city, town, school district, or village district, entered into after July 1, 1979, shall provide for the payment of properly assessed real and personal property taxes by the party using or occupying said property no later than the due date

Attached with this memo are both RFPs for review and an attachment that shows the estimated cost comparisons that residents would potentially be charged based on current rates through the RFP process.

Staff Recommendation:

If it is the decision of the council to continue moving forward with privatizing the Transfer Station, then it is the staff's recommendation in accordance with the most responsible proposal, RFP requirements, and staff review that the City Council authorize the City Manager to enter into negotiations with DeCamp Waste Services.

Mr. MacLean stated two proposals were submitted, one proposal met the bid requirements, the other did not but, they offered an alternative which was unsolicited.

Mike Tetu, Ward 1, noted he hasn't seen the proposals by both vendors, but did go to the pre-bid meeting. Mr. Tetu noted it was unfair to make any decision, and his proposal has never been on agenda.

Mr. Tetu, Ward 1, stated he wants what's best for the users of the Transfer Station, and many people would want to speak to this. Mr. Tetu does not want the decision rushed.

Councilor Stone stated the Transfer Station was not rushed and felt as though due diligence has been made to collect all information needed, and supports going the private route.

A motion was made by Councilor Stone and seconded by Councilor Limoges that the City Manager be authorized to negotiate with DeCamp for the privatization of the City of Claremont Transfer Station.

Mayor Girard asked for further discussion.

Casella representative stated the Transfer Station does not have an expense problem; it has a revenue problem. Land-fill prices are increasing, and land-fills on the North East are decreasing and explained this will also become another sunk cost.

Travis DeCamp, owner of DeCamp Trucking explained to the Council that DeCamp wants to do what is best for the City of Claremont, while being transparent. Mr. DeCamp stated he wants to try to keep costs as low as possible.

Councilor Koloski shared concern for recycling, and asked if either business collects recycling without charge. Mr. DeCamp explained times have changed and there is a cost for recycling.

Casella Representative noted the way the Claremont Transfer Station recycles is premium, because the glass and cardboard are separated. Suggested the mixed paper should go into zero-sort.

Mr. MacLean noted these are both well-run businesses. Mr. MacLean noted a privatization model works. Mr. MacLean explained that the Council was looking for RFP's relative to privatization, and while Mr. Tetu has put in hard work and effort; Mr. Tetu's plan has always been regarded as unsolicited.

Councilor Koloski stated if the Council proceeds, he will vote no, as he wants to make sure the citizens have more time to weigh in on the privatization.

A motion was made by Councilor O’Hearne and seconded by Councilor Beliveau to table the Transfer Station RFP to July 13th.

Roll call:

Contois - yes

O’Hearne - yes

Stone - no

Matteau - no

Koloski - yes

Limoges - no

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 6-3

BUDGET

Sanitation Budget

A motion was made by O’Hearne seconded by Councilor Beliveau to tentatively adopt the Sanitation Budget for the amount of \$ 236,321.00.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - no

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-1

Police Budget

Mr. MacLean explained how the Council wanted Chief Chase to find \$125,000.00 from his budget, Chief Chase did come up with \$105,000.00.

A motion was made by Councilor Contois and seconded by Councilor Beliveau to tentatively adopt the Police Budget for the amount of \$ 3,279,802.00

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Streets and Roads (Highways)

Mr. MacLean noted the major issue was the ability to pave and construct roads and sidewalks using a bonding method.

Mayor Girard stated many discussions have been had and appreciates all the work Director Richmond has put into the budget relative to the bonding issues.

Mayor Girard stated paving should be in the budget, the Mayor suggested taking the \$105,000.00 from the Police Department plus adding another \$400,000.00 this along with the SB401 will bring this to just under \$800,000.00 for paving and sidewalks.

Mayor Girard wants to see \$505,000.00 added to a paving line item.

Mr. MacLean clarified with the Mayor that the \$505,000.00 should come from a property tax increase. Mayor Girard stated this was correct.

Ms. Richmond stated the new rate would be \$15.78 this adds \$0.5153 to the tax rate (adding the \$105,000 from police budget).

A motion was made by Councilor Limoges and seconded by Councilor Stone to tentatively adopt the Streets and Roads (Highways) Budget for the amount of \$ 3,278,367.00

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Sewer Fund Budget

Mr. MacLean explained there is an adjustment noted on the budget.

Councilor Koloski stated the DPW experienced an issue over weekend, and asked if this is something handled in-house or through Primex. Mr. Gleeson stated Primex is sending someone to inspect tomorrow.

A motion was made by Councilor Mooshian and seconded by Councilor Beliveau to tentatively adopt the Sewer Fund Budget for the amount of \$ 2,899,536.00.

Roll call:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

General Fund Budget

Ms. Richmond noted the revenues were broken down by function, and noted the handout Mayor Girard referenced earlier.

A motion was made by Councilor Limoges and seconded by Councilor Beliveau to tentatively adopt the General Fund Budget for the amount of \$ 6,512,594.75

Roll call:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes

Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Resolution 2022-31 Encumbrance Budget- Public Hearing

Ms. Richmond explained the redlined items are changes from the original resolution.

Resolution 2022-31

**Adoption of the 2022 Encumbrance Budget into FY 2022-2023
City of Claremont**

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, that it hereby adopts the following for the 2022 encumbrances: *(Majority vote required)*

			
Dept #	Department - General Description	Amount	Detailed Description
411	Policy/Executive	\$ 30,000	Re-Encumber \$30,000 for Code Enforcement/Property Maintenance
413	Elections	\$ 3,000	Capital Reserve- Voting Machines
415	Municipal Complex	\$ 40,000	Electrical Repairs in City Hall
415	Municipal Complex	\$ 15,000	Opera House stairwell, openings, and railing upgrades
415	Municipal Complex	\$ 6,000	Sewer/water separation at City Hall
416	Planning & Development	\$ 5,000	Re-Encumber for Vegetation Control/ banners for Pleasant St.
416	Planning & Development	\$ 2,000	Increase cost of gasoline, propane, and electrical

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417	General Services	\$ 35,000	Network switches, rotators, and city hall copy machine
417	General Services	\$ 50,000	Retirement Reserve for GASB
421	Police	\$ 40,000	Re-Encumber for Purchase of Lockers and upgrades to existing shower areas
421	Police	\$ 8,000	Re-Encumber for continued improvements in the booking room to include equipment and safety measures.
421	Police	\$ 110,146	Re-Encumber to cover descending share of COPS grant if awarded
421	Police	\$ 5,000	Re-Encumber for additional Advertising of open positions at the CPD
421	Police	\$ 30,000	Re-Encumber \$20,000 from FY 2021 and encumber another \$10,000 from FY 2022 for Recruiting Bonus: Would like to continue carrying over funds in hopes of attracting qualified candidates.
421	Police	\$ 15,000	Retention contracts
422	Fire	\$ 3,000	Vehicle M&R for corrosion repair to Ladder 1
432	Welfare	\$ 12,000	Rents held for inspection process and to purchase filing cabinets
434	Sanitation	\$ 3,500	Re-Encumber from FY 2021 for "Put & Take" building to use as Transfer Station office space; will need to be wired for electric & phone, be insulated, painted etc. <i>Or scale upgrade</i>
441	Streets & Roads	\$ 10,000	Increase cost for fuel/heating

441	Streets & Roads	\$ 20,000	Crushing of asphalt pile
441	Streets & Roads	\$ 15,500	Bridge Repair
441	Streets & Roads	\$ 33,000	Additional sidewalk maintenance, repair, and replacement
471	Cemetery	\$ 1,000	Vehicle/equipment maintenance
471	Cemetery	\$ 1,000	Increase cost for fuel/heating
471	Cemetery	\$ 3,000	Cemetery- Mower Replacement
471	Cemetery Expenses	\$ 8,000	Tree removal
TIFD	P&D - Downtown TIFD	\$ 15,518	Re-encumber Engineering services and demolition costs anticipated for the old Sullivan tower/wheelhouse
	Total Request to Encumber into FY 2023	\$ 519,664	To use the General Fund monies (\$504,146) and TIFD monies (\$15,518) already raised on the tax rate for projects, services or equipment that were not able to be completed in the current Fiscal year.

A motion was made by Councilor Contois and seconded by Councilor Beliveau to Adopt the 2022 Encumbrance Budget into FY 2022-2023.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Councilor Stone questioned the scale. Mr. Gleeson explained this was for a put and take shed and the current building is decrepit. It will cost \$3,500.00 for upgrades.

Nancy Merrill wanted to make note that the Encumbrance Budget TIFD includes the cost of the Sullivan Smokestack.

Councilor Stone asked for an explanation of the \$15,000.00 retention. Chief Chase explained this is for the remaining money the Council signed off on that is due to employees.

Mr. MacLean suggested the Council should give consideration to amending the Encumbrance Budget, and perhaps a motion to only exclude a few items.

Roll call:

Contois - yes

O'Hearne - no

Stone - no

Matteau -yes

Koloski - no

Limoges - no

Beliveau - yes

Mooshian - yes

Girard - no

Motion: 4-5 motion did not pass

Councilor Stone suggested taking \$3,500.00 from Sanitation.

A motion was made by Councilor Stone and seconded by Councilor Beliveau to Adopt the 2022 Encumbrance Budget into FY 2022-2023 minus \$3,500.00 from Sanitation totaling \$516,164.00

The difference in the General fund would be \$5,645, and the TIFD would be \$15,518.00

Roll call:

Contois - yes

O'Hearne - no

Stone - yes

Matteau - no

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-1

Resolution 2022-32 Supplemental Appropriation to Elections Complex – Public Hearing

RESOLUTION 2022-32

Supplemental Appropriation to Elections

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, to raise and appropriate a supplemental appropriation to the 2022 Elections Budget, such purpose to add funds to the reserve fund for voting machines.

\$3,000	Capital Escrow	01-413-991-0000
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BE IT FURTHER RESOLVED that of said sum, \$3,000 is to come from unanticipated revenue from the City's share of return of surplus from Health Trust; with no impact on the tax rate; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing

A motion was made by Councilor Contois and seconded by Councilor Beliveau to raise and appropriate a supplemental appropriation to the 2022 Elections Budget, such purpose to add funds to the reserve fund for voting machines.

Councilor Contois read Resolution 2022-32 into record.

Roll call:

**Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes**

Girard - yes
Motion carried 9-1

Resolution 2022-33 Supplemental Appropriation to Municipal Complex – Public Hearing

RESOLUTION 2022-33

Supplemental Appropriation to Municipal Complex

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, to raise and appropriate a supplemental appropriation to the 2022 Municipal Complex, such purpose being for the increase in building maintenance and repair costs.

\$61,000	Building M & R	01-415-510-0000
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BE IT FURTHER RESOLVED that of said sum, \$61,000 is to come from unanticipated revenue from the City's share of return of surplus from Health Trust; with no impact on the tax rate; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor Limoges and seconded by Councilor Beliveau to raise and appropriate a supplemental appropriation to the 2022 Municipal Complex, such purpose being for the increase in building maintenance and repair costs.

Councilor Limoges read resolution 2022-33 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:
Contois -yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes

Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Resolution 2022-34 Supplemental Appropriation to General Services Complex – Public Hearing

RESOLUTION 2022-34

Supplemental Appropriation to General Services

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, to raise and appropriate a supplemental appropriation to the 2022 General Services, such purpose being for the increase in general services costs.

\$50,000

GASB Liabilities

01-417-630-0085

BE IT FURTHER RESOLVED that of said sum, \$50,000 is to come from unanticipated revenue from the City's share of return of surplus from Health Trust; with no impact on the tax rate; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor Ohearne and seconded by Councilor Koloski to raise and appropriate a supplemental appropriation to the 2022 General Services, such purpose being for the increase in general services costs.

Councilor O'Hearne read resolution 2022-34 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:
Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

AFSCME DPW Collective Bargaining Agreement

Mr. MacLean explained to the Council the agreement has only been renewed for one year; because Claremont does not have a permanent City Manager this may impact a multi-year agreement.

I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Public Works) which calls for the following increases in salary and benefits:

Year	Estimated Increase
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FY 2023	\$29,793.08
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Said sums represent the additional costs attributable to the increase in salaries and benefits, over those of the appropriation at current staffing levels. The increase for FY 2023 shall be covered in the 2023 budget.

A motion was made by Councilor Koloski and seconded by Councilor Beliveau to authorize agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Public Works).

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Teamsters Collective Bargaining Agreement

Mr. MacLean stated this is a new collective bargaining group, the contract is also for a one year agreement.

I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and Teamsters Local Union #633, which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2023	\$ 17,116.78

Said sums represent the additional costs attributable to the increase in salaries and benefits, over those of the appropriation at current staffing levels. The increase for FY 2023 shall be covered in the 2023 budget.

A motion was made by Councilor Stone and seconded by Councilor Koloski to authorize agreement between the City of Claremont and Teamsters Local Union #633.

Roll call:

**Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0**

Budget Hearing and Vote

Resolution 2023-1 Tax Anticipation Note

Ms. Richmond stated this is a contingency plan for what could happened, and noted it hadn't been used since going through the quarterly tax bills.

RESOLUTION 2023-1

Tax Anticipation Note

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, pursuant to the Municipal Finance Act, that the City Treasurer, with the

approval of the City Manager, is hereby authorized to issue and sell notes of the City of Claremont, in an amount not to exceed \$4,000,000.00 in anticipation of receipt of taxes for the fiscal year 2023.

Such amount will not exceed the total tax levy for the year 2022. *(Majority Vote Required)*

A motion was made by Councilor Koloski and seconded by Councilor O’Hearne for the City Treasurer, with the approval of the City Manager, is hereby authorized to issue and sell notes of the City of Claremont, in an amount not to exceed \$4,000,000.00 in anticipation of receipt of taxes for the fiscal year 2023.

Councilor Koloski read Resolution 2023-1 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Resolution 2023-2 To Adopt the 2023 General Fund Budget

RESOLUTION 2023-2

**ADOPTING THE 2023 GENERAL FUND BUDGET
FOR THE CITY OF CLAREMONT**

WHEREAS in accordance with the Charter of the City of Claremont, and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 22, 2022;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it adopts the following for its proposed expenditures and revenues for all departments for its 2023 fiscal year as follows. *(Majority Vote Required)*

2023 GENERAL FUND

Expenditure Summary (as amended):

Policy and Administration

Policy	\$ 613,622
City Administration	907,318
Elections & Registrations	15,400
Assessing	251,372
Municipal Complex	459,693
Planning & Development	1,051,985
General Services	988,090

Public Safety

Communications – 911	\$ 629,861
Police Department	3,385,041 \$3,279,802.00
Fire Department	2,638,676

Health & Welfare

Welfare Department	\$ 393,897
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Public Works

Sanitation	\$ 236,321
Streets & Roads	2,773,367 \$3,278,367.00

Library	412,132
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Debt Service	\$ 1,114,950
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Public Service Enterprises

Cemetery	\$ 195,193
Airport	138,065

Recreation & Parks

Parks	\$ 414,656
CSB-Recreation	1,363,641

Outside Agency	\$ 30,000
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TOTAL **\$ 18,013,280** **\$18,413,041.00**

Revenue Summary (as amended):

Taxes	\$	17,050
Interest on Taxes		385,000
State of New Hampshire		1,007,255
Licenses/Permits/Fees		2,271,220
Departmental Revenue		1,277,240
Rent of City Property		78,168
Payments in Lieu of Taxes	146,566	\$157,677.75
Miscellaneous Revenue		62,730
From Fund Balance		820,670
From Capital Reserve		435,584

REVENUE TOTAL **\$ 6,501,483** **\$6,512,594.75**

A motion was made by Councilor Limoges and seconded by Councilor Beliveau to adopt the 2023 amended General Fund Budget for the City of Claremont.

Councilor Limoges read resolution 2023-2 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Resolution 2023-3 To Adopt the 2023 Water Division Budget

RESOLUTION 2023-3

**TO ADOPT THE 2023 WATER DIVISION BUDGET FOR THE
CITY OF CLAREMONT**

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 22, 2022 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS the City of Claremont Water and Sewer Divisions are operated as separate entities and by revenues derived from their individual enterprises;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Water Division as follows. *(Majority Vote Required)*

2023 PROPOSED WATER DIVISION BUDGET

REVENUE

Water Revenue	\$1,868,262	\$2,045,298.00
Miscellaneous Revenue		27,200
From Retained Earnings/Fund Balance	81,976	\$89,580.00

TOTAL

\$1,982,918.00

EXPENSE

Water Department	\$1,977,438
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TOTAL

\$1,977,438 \$1,982,918.00

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to adopt the 2023 amended Water Division Fund Budget for the City of Claremont. As amended.

Councilor Stone read resolution 2023-3 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Resolution 2023-4 To Adopt the 2022 Sewer Division Budget

RESOLUTION 2023-4

**TO ADOPT THE 2023 SEWER DIVISION BUDGET FOR THE
CITY OF CLAREMONT**

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 22, 2022 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS the City of Claremont Water and Sewer Divisions are operated as separate entities and by revenues derived from their individual enterprises;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Sewer Division as follows. *(Majority Vote Required)*

2023 PROPOSED SEWER DIVISION BUDGET

REVENUE

Sewer Revenue	\$2,301,200	\$2,551,200.00
Miscellaneous Revenue		411,929
To retained earnings		<u>183,865</u> \$63,593

TOTAL	\$2,896,994	\$2,899,536.00
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EXPENSE

Sewer Department		<u>\$2,896,994</u>
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TOTAL	\$2,896,994	\$2,899,536.00
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A motion was made by Councilor Beliveau and seconded by Councilor O’Hearne to adopt the 2023 amended Sewer Division Fund Budget for the City of Claremont.

Councilor Beliveau read resolution 2023-4 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Resolution 2023-5 To Adopt the 2022 Downtown Tax Increment Finance District Budget

Ms. Richmond noted no changes have been made.

RESOLUTION 2023-5

TO ADOPT THE TAX INCREMENT FINANCE DISTRICT BUDGET - DOWNTOWN

FOR THE CITY OF CLAREMONT

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 22, 2022 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS in accordance with RSA 162-K:12 the City Council must review and approve the operating budget of a tax increment finance district;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Downtown Tax Increment Finance District. *(Majority Vote Required)*

**2023 PROPOSED TAX INCREMENT FINANCE
DISTRICT BUDGET – DOWNTOWN**

REVENUE

Revenues	\$710,850
TOTAL	\$710,850

EXPENSE

Expenses	\$710,850
TOTAL	\$710,850

A motion was made by Councilor Mooshian and seconded by Councilor Beliveau to adopt the 2023 Tax Increment Finance District Budget for the City of Claremont.

Councilor Mooshian read resolution 2023-5 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

COMMITTEE REPORTS

Councilor Stone noted the Policy Committee should be meeting only once a month in July and in August.

Assistant Mayor Matteau stated the Planning Board approved one ADU.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor O’Hearne asked what the updates for Pleasant Street are. Chief Chase stated there is a status meeting every Friday and will follow up. Chief Chase also noted traffic lights are supposed to come in and is hoping to have them by the next meeting.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 942 p.m., a motion was made by Councilor Beliveau and seconded by Councilor O’Hearne to adjourn.

Roll call:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council